

Vijay Nandkishor Gupta vs Rita Vijay Gupta on 4 March, 2019

Author: Z.A.Haq

Bench: Z.A.Haq

Judgment

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR.

CRIMINAL APPLICATION (APL) NO. 851/2018

Vijay Nandkishor Gupta,
Aged about 37, Occu. Education,
R/o. Naka Pardi, Tah. & Dist. Yavatmal

.... APPLICANT

// VERSUS //

1] Sou. Rita Vijay Gupta,
Aged about 35 years, Occ. Business,

2] Ku. Achal Vijay Gupta,
Aged about 06 years, Occu. Minor,
Through Mother, Respondent no. 1,
Sou. Rita W/o Vijay Gupta,

Both Nos. 1 and 2, R/o. C/o. Bhikulalji,
Brijlal Gupta, Gupta Kirana, Main Market,
Babhulgaon, Tah. Babhulgaon, Dist. Yavatmal

.... NON-APPLICANT(S)

Shri Anjan De, Advocate for the applicant
Ms. F.N. Haidary, Adv h/f Shri R.M. Daga, Adv for the non-applicants

CORAM : Z.A.HAQ, J.
DATED : 04/03/2019

ORAL JUDGMENT :

1] Heard .

2] ADMIT .

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3] The applicant (husband of the non-applicant no. 1) had filed

H.M.P. No. 184/2013 seeking decree for restitution of conjugal rights under Section 9 of the Hindu Marriage Act. By the judgment dated 15/04/2015, the trial Court has granted decree of restitution of conjugal rights in favour of the husband, directing the wife to resume cohabitation with her husband within one month from the date of the judgment. The judgment and decree passed by the trial Court is challenged by the non-applicant no. 1 - wife before the District Court in appeal i.e. R.C.A. No. 55/2015 which is pending. The learned advocate for the non-applicants has not been able to point out whether the effect, operation and execution of the judgment and decree passed by the trial Court on 15/04/2015 has been stayed. The advocate for the applicant has made a specific statement that the effect, operation and execution of the judgment and decree passed by the trial Court on 15/04/2015 is not stayed in the appeal filed by the non-applicant no. 1.

In the judgment given in H.M.P. No. 184/2013, the learned trial Judge has recorded specific finding that the husband has proved that the wife has left his company without any just and probable cause. 4] The present proceedings arise out of the order and judgment passed by the subordinate Courts in the proceedings under the Protection of Women From Domestic Violence Act, 2005. By the order dated 29/01/2018, the learned Magistrate has held that the non-applicant no. 1 - wife and the Judgment 3 apl851.18.odt non-applicant no. 2 - minor daughter are entitled for Rs. 2500/- per month each towards maintenance. The order passed by the learned Magistrate was challenged by the applicant - husband before the Sessions Court in appeal which is dismissed by the impugned judgment.

5] The learned advocate for the applicant has submitted that in view of the finding recorded by the Civil Court in the judgment given in H.M.P. No. 184/2013 on 15/04/2015 that the wife has left company of the husband without any just and probable cause and though the execution of the decree passed in H.M.P. No. 184/2013 has not been stayed by the appellate Court, the wife is staying away on her own and therefore she is not entitled for maintenance from the applicant - husband. I find substance in the submission made on behalf of the applicant - husband. The subordinate Courts have not considered this relevant aspect in the right perspective and it has resulted in the erroneous order upholding the claim of the non-applicant no. 1 for maintenance from the applicant - husband. 6] In so far as the liability of the applicant to maintain the non- applicant no. 2 - daughter (aged

about 6 years), much is not argued and the liability is accepted. At the time of hearing, I had put the learned advocate for the applicant on notice that in the facts of the case, I intend to exercise the jurisdiction under Section 482 of the Code of Criminal Procedure and enhance the amount of maintenance payable by the applicant to the non-

Judgment 4 apl851.18.odt applicant no. 2 (minor daughter). The learned advocate for the applicant has accepted that the applicant would pay Rs. 5000/- per month for the non- applicant no. 2 - Ku. Achal.

In view of the above, the following order is passed:-

ORDER

a) The impugned order and judgment are modified.

b) It is held that the non-applicant no. 1 - Sau. Rita Vijay Gupta is not entitled for maintenance from the applicant -

husband, at this stage.

c) The non-applicant no. 1 will be at liberty to file fresh application praying for maintenance from the husband, after the decision in R.C.A. No. 55/2015, depending on the decision.

d) It is held that the applicant is liable to pay Rs. 5000/- per month towards maintenance for the non- applicant no. 2 - Ku. Achal.

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e) This order will be operative from 01/03/2019.

The criminal application is disposed in the above terms. In the circumstances, the parties to bear their own costs.

JUDGE Ansari